

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On December 18, 2021, and with entry registration number O00007128e2100051803, a complaint was received by this Agency filed by A.A.A. (hereinafter, the complainant) regarding EUSKALTEL, S.A. (hereinafter, the respondent), for an alleged violation of Articles 15 and 18 of the GDPR.

In particular, due to the following circumstances:

The complainant stated that they had requested access to their personal data, specifically to the geolocation data concerning their phone number ***PHONE.1 (whether digital or based on the positioning of telecommunications antennas) from January 1, 2021, until the moment they received a response to the exercise of the right of access.

They indicated that they submitted such a request via email directed to the address listed in the privacy policy and that they were informed that they could not be assisted with that matter, as that email is solely for the receipt of documentation, directing them to a phone number.

They provided a copy of the email sent and a copy of the details of the privacy policy regarding the email address to which requests for access to their data can be directed, which is the one to which the complainant addressed.

They also indicated that days after the request for the right of access, they requested the exercise of the right to restrict the processing of their personal data, specifically requiring that they not proceed with the deletion of the same until access to them had been granted.

SECOND: On April 25, 2022, a resolution was issued by the Director of the AEPD in file EXP202201673, in which it was agreed to archive the proceedings due to the respondent's reasoned denial of the right of access requested by the complainant.

The complainant filed a contentious-administrative appeal against the resolution of the Director of the AEPD dated April 25, 2022.

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THIRD: The First Section of the Contentious-Administrative Chamber of the National Court, by judgment of January 19, 2023, No. Appeal ***APPEAL.1, resolved to uphold, due to the acquiescence of the defendant Administration, the contentious-administrative appeal filed by A.A.A. against the resolution of the Director of the AEPD, dated April 25, 2022, which is annulled for being contrary to the legal order.

In its dispositive part, it states: WE DECREE

“To uphold, due to the acquiescence of the defendant Administration, the present appeal filed by the legal representation of A.A.A. against the Resolution of the Director of the Spanish Agency for the Protection of Data of April 25, 2022, which is annulled for being contrary to the legal order, without imposing costs on either party.”

The First Section of the Contentious-Administrative Chamber of the National Court, on April 10, 2023, signed an order for the complement of the judgment, No. Appeal ***APPEAL.1, completing the ruling of the final judgment of these proceedings of January 19, 2023, to expressly add in said ruling the retroaction of proceedings and processing of the complaint filed by the complainant.

In its dispositive part, it states:

“To allow the complement of the judgment of January 19, 2023 in the sense that where it says, at the end of the ruling, that (...) against the Resolution of the Director of the Spanish Agency for the

Protection of Data of April 25, 2022, which is annulled for being contrary to the legal order, IT MUST BE ADDED THAT: ordering the AEPD to retroact the proceedings, and that it proceed to process the complaint filed by Mr. A.A.A. against Euskaltel.”

FOURTH: On July 13, 2023, a resolution was issued by the Director of the AEPD, in which it was agreed:

“FIRST: To execute the judgment in the sense of art. 104.1 of the LJCA – “Once a judgment is final, the judicial secretary shall communicate it within ten days to the body that carried out the activity subject to the appeal, so that, upon receiving the communication, it carries it out in due effect and performs what is required for compliance with the declarations contained in the ruling, and within the same period indicate the body responsible for compliance with it”-, and

SECOND: To agree to the retroaction of proceedings and that it proceed to process the complaint filed by Mr. A.A.A. against Euskaltel.”

FIFTH: On October 24, 2023, the Director issued an admission agreement for processing, in which the respondent was granted a hearing period, to present the allegations they deemed appropriate within ten working days, summarizing the following allegations:

Firstly, it indicates that the complainant received a timely response to their access request on three occasions through three interactions:

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“1. Telephone information provided on 23/11/2021 and recorded at 12:27 hours, according to evidence submitted in the first statement, and corroborated by Mr. A.A.A. in his conversations with Virgin Telco.

2. Email from the DPD of Virgin Telco dated 20/12/2021 in response to the complaint filed by Mr. A.A.A. before him on 29/11/2021.

3. Email from the DPD of Virgin Telco, from the same day, in which the information provided to Mr. A.A.A. is expanded in light of the reiteration of his complaint.”

Facts considered undisputed, “as it is only claimed that the data to which access was requested was not provided: indeed, it was not provided because his request was denied (...)”

Secondly, it indicates that the requested data was not provided in accordance with the provisions of Law 25/2007, of October 18, on the Retention of Data related to Electronic Communications and Public Communication Networks, which imposes the obligation to retain certain data generated as a result of the activity of its users, solely and exclusively for the purpose of making it available to the authorities for its use in the detection, investigation, and prosecution of serious crimes, which is why the claimant was informed that his request was denied because “We cannot provide you with the geolocation data since there is a more specific law than the GDPR in Spain, Law 25/2007 on Data Retention, which states that we can only provide that information to the police upon a request from a judge.”

Thirdly, it states that “it does not have, nor has it ever had, geolocation data” of the claimant, as Law 25/2007 does not impose an obligation on operators to retain geolocation data, in the sense stated adversarially: it only obliges them to retain two types of data (Article 3.1.f):

“1. The location label (cell identifier) at the beginning of the communication.

2. The data that allows the geographical location of the cell to be fixed, by reference to the location label, during the period in which the communication data is retained.”

It also states that “Virgin Telco is a virtual mobile operator (OMV), and does not hold concessions for the public radio spectrum as mobile network operators (OMR) do. (...) Companies like Virgin Telco do not store the Cartesian coordinates or the GPS location of a mobile phone making a call: it only has the ‘cell identifier’ from which each communication was initiated.”

Fourthly, it argues that the claimant's request, “in the terms required, entails a cost in terms of

resources and a clear violation of the rights of third parties who would be affected by the necessary measures to comply with the claimant's request, which Virgin Telco cannot afford to assume."

Indicating that

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a preliminary calculation has been made regarding what it would entail to respond to this request, amounting to €1,668.80.

Finally, it indicates that it has provided a reasonable alternative for the claimant, who informed the Data Protection Delegate of the responding party, via email dated May 23, 2023, that he needed the geolocation data from the year 2021 to demonstrate the change of his tax residence to ***COUNTRY.1 during the year 2021, before the Tax Agency of this country. For this reason, it provided the claimant with "the information of the roaming country of his telephone line." Since "this data is indeed processed in billing processes, and is stored during the applicable legal obligation limitation periods, which amounts to six years."

It understands that such information is more than sufficient to support before the Tax Agency or any other tax authority that a change of residence occurred: it indicates that Mr. A.A.A.'s mobile phone made and received calls from ***COUNTRY.1, primarily, and not from Spain, thus there is no need for geolocation data for this purpose. Hence, we qualify his claim as a whim (and an abuse of rights), and we consider that this circumstance should be taken into account when resolving the adverse claim.

SIXTH: After examining the document submitted by the responding party, it is forwarded to the claimant on November 13, 2023, for them to submit any allegations they deem appropriate within ten working days.

SEVENTH: On November 21, 2023, the claimant requested a copy of the file.

On November 22, 2023, the file was sent to the claimant.

EIGHTH: On December 4, 2023, the claimant submitted a written statement of allegations in which they indicate, in summary, the following:

They begin by stating "that the fact that Euskatel processes geolocation data of the interested party has never been disputed by any of the parties in this procedure, neither before the AEPD nor before the National Court (...)"

They also indicate that "geolocation data (related to a natural person) is personal data. As the Article 29 Working Party noted back in 2011, in Opinion 13/2011, data derived from base stations must be considered personal data. This includes the identification numbers of the cells that provide approximate information about the location of individuals."

They find it contradictory that Euskatel states that it does not process geolocation data when in its document of March 14, 2022, it indicated that it processes it for two purposes: (i) "For the creation of profiles for direct marketing purposes based on consent," and (ii) "For compliance with Law 25/2007 on data retention due to legal obligation."

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Therefore, it considers that "the mere storage of personal data constitutes processing according to Article 4(2) GDPR. Thus, Euskatel must comply with its obligations arising from the GDPR, and not only those of Law 25/2007."

It also indicates that "Euskatel, as the data controller, should, under Article 28(3)(e) GDPR, ensure contractually (or, where applicable, as provided in a 'legal act') the assistance of the data processor to respond to data subject requests. That is to say, Euskatel should, by legal obligation, have the assistance of the OMRs with which it works to respond to this party's request.

19. Even in the case of being considered joint controllers, Euskatel and the OMRs, Euskatel should

have reached an agreement under Article 26(2) GDPR to allocate tasks regarding data subject requests. (...)"

It points out, regarding Law 25/2007, that "the GDPR continues to take precedence over national legislation by virtue of the principles of supremacy of EU law (see the CJEU ruling in case C-6/64, *Costa v Enel*)."

It then indicates that "from the literal wording of Article 9(1) of Law 25/2007, it is clear that Law 25/2007 does not exempt Euskatel from its obligation to provide access to the geolocation data of this party under Article 15 GDPR. Indeed, as this party has also stated in the contentious-administrative appeal, Article 9 of Law 25/2007 is the only provision that refers to the right of access by data subjects, specifically referring to exceptions to the right of access, which means that the right of access provided for in Article 15 GDPR is generally applicable, unless the applicable exception is invoked. In the case at hand, information about "a data transfer" under Law 25/2007 could only be excluded (i.e., information about certain "recipients," to use the language of the GDPR), if it had occurred."

It considers that the effort and cost that Euskatel incurs to comply with its request demonstrate the insufficiency of its system since "it is Euskatel's responsibility to organize its systems in this way. According to the Guidelines 01/2022 of the EDPB on the right of access, the available technical functions for retrieving data must be determined first."

It understands that the argument is "unsustainable" that Euskatel claims that "the manual search of the data subject's records would violate the 'privacy' of other users, thus affecting the rights of third parties," since (i) "it is not clear to whom the data of other users would be disclosed" (ii) "A computer system does not require analyzing and consulting the data of millions of users to extract the data of an individual. On the contrary, it simply requires a search with parameters to extract from the file the data of the individual in question. In other words, if Euskatel's reasoning were followed, no access request would ever be possible, which would imply a generalized implicit repeal of the GDPR due to a curious technical impossibility (...)"

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Regarding the alternative offered by Euskatel to respond to the purposes for which the access request was submitted, it states that such reasons are irrelevant and not mandatory for responding to such a request, and therefore the access request should have been attended to. It also indicates that, as already stated in its claim for the contentious-administrative appeal, the data provided "is not sufficiently precise to be classified as geolocation data." Finally, it indicates that "After the interested party submitted a request for access to Euskatel, they also requested the limitation of processing to prevent the requested data from being deleted. However, Euskatel has never attended to this request (...). This behavior constitutes a violation of Article 18(1)(c) of the GDPR."

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, among them, to enforce the Regulation

and promote awareness among controllers and processors regarding their obligations, as well as to handle complaints submitted by an interested party and investigate, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the case that they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the claim for the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to the present procedure, the claim was forwarded to the respondent party for analysis, to respond to this Agency within one month, and to prove that it had provided the claimant with the due response.

Although on April 25, 2022, a resolution was issued by the Director of the AEPD in file EXP202201673, in which it was agreed to archive the proceedings due to the respondent party having reasonably denied the access right requested by the claimant, following the filing of a contentious-administrative appeal by the claimant, the First Section of the Contentious-Administrative Chamber of the National Court, by judgment of January 19, 2023, no. Appeal ***RECURSO.1, resolved to uphold, by acquiescence of the defendant Administration, the aforementioned contentious-administrative appeal, which annulled the resolution of April 25 by the Director of the AEPD for being contrary to the legal order.

On July 13, 2023, a resolution was issued by the Director of the AEPD, executing the aforementioned judgment as well as reverting the proceedings. This resolution determines the opening of the present procedure for failure to attend to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the failure to attend to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the claimant. After this period, the interested party may consider their claim upheld."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of correcting any infringement of the GDPR, among which is included "ordering the controller or processor to attend to the requests for the exercise of the rights of the interested party under this Regulation."

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

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In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The

burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to such personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the data controller provides remote access to the data, considering the request fulfilled (although the data subject may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so. Furthermore, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if not obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of

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Obtaining a copy of the personal data subject to processing will not negatively affect the rights and freedoms of others.

In the case analyzed here, the claimant exercised their right of access, which was denied by Euskaltel on December 20, 2021, indicating that "We cannot provide you with the geolocation data since there is a more specific law than the GDPR in Spain, Law 25/2007 on Data Retention, which states that we can only provide that information to the police upon a request from a judge."

Now we must analyze whether the request made by the claimant and denied by the respondent falls within the right of access and therefore must be addressed.

V

The right of access in relation to personal data that must be retained in accordance with Law 25/2007, of October 18

According to the respondent, the requested data was not provided to the claimant by virtue of the provisions established in Law 25/2007, of October 18, on the Retention of Data related to electronic communications and public communication networks, which imposes the obligation to retain certain data generated as a result of the activity of its users, with the sole and exclusive purpose of making it available to the authorities for the purposes of its use in the detection, investigation, and prosecution of serious crimes. This is the reason why the claimant was informed that their request was denied because "We cannot provide you with the geolocation data since there is a more specific law than the GDPR in Spain, Law 25/2007 on Data Retention, which states that we can only provide that

information to the police upon a request from a judge.”

In this regard, the following should be noted: first, Article 15.1 of the GDPR establishes that “The data subject shall have the right to obtain from the controller confirmation as to whether or not personal data concerning them is being processed and, where that is the case, access to the personal data and the following information.”

Additionally, paragraphs 3 and 4 of Article 15 establish the following:

“3. The controller shall provide a copy of the personal data undergoing processing. The controller may charge a reasonable fee based on the administrative costs for any further copies requested by the data subject. When the data subject makes the request by electronic means, and unless otherwise requested, the information shall be provided in a commonly used electronic format.

4. The right to obtain a copy mentioned in paragraph 3 shall not adversely affect the rights and freedoms of others.”

For its part, Recital 63 of the GDPR establishes the following:

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"Interested parties must have the right to access personal data collected concerning them and to exercise this right easily and at reasonable intervals, in order to know and verify the lawfulness of the processing. This includes the right of interested parties to access health-related data, for example, data from their medical records that contain information such as diagnoses, test results, evaluations by healthcare professionals, and any treatments or interventions performed. Therefore, every interested party must have the right to know and to be informed, in particular, of the purposes for which their personal data is processed, the duration of processing, the recipients, the logic involved in any automated processing of personal data, and, at least when based on profiling, the consequences of such processing. If possible, the data controller must be empowered to provide remote access to a secure system that offers the interested party direct access to their personal data. This right must not adversely affect the rights and freedoms of third parties, including trade secrets or intellectual property, and, in particular, the intellectual property rights that protect software programs. However, these considerations must not result in the refusal to provide all information to the interested party. If a large amount of information relating to the interested party is processed, the data controller must be empowered to request that, before providing the information, the interested party specify the information or processing activities to which the request refers."

The responding party does not dispute the nature of personal data of the information requested by the claimant. Thus, the provisions of the right of access would fully apply to them. It merely asserts that it would not be obliged to grant such a right because, in its opinion, its retention would be legally established solely for the purpose of being made available to the security forces, subject to judicial authorization, in accordance with the provisions of Law 25/2007, of October 18.

However, once the character of "personal data" of the requested information is determined, the only exceptions that may be established regarding the exercise of any rights set forth in Articles 15 to 22 of the Regulation will be those legally established.

In this regard, Article 9 of the aforementioned Law 25/2007 establishes the following:

"Article 9. Exceptions to the rights of access and cancellation.

1. The data controller shall not communicate the transfer of data carried out in accordance with this Law.

2. The data controller shall deny the exercise of the right of cancellation under the terms and conditions provided for in Organic Law 15/1999, of December 13."

It can be easily noted that no restriction is established regarding the possibility of exercising the right of access. It only contains the obvious precautions that the data subject will not have to be informed of the transfer of

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the same (an obvious issue given that they pertain to criminal investigations), and that the right to erasure cannot be exercised.

The conclusion is that the location data of the telephone line may be subject to a request for the right of access.

VI

Exercise of the right and conditions for its attention by the respondent

The respondent states that “it does not have, nor has it ever had, geolocation data,” a statement that contradicts the response given to the claimant's request for the right of access, since it was only indicated that “We cannot provide you with the geolocation data as there is a more specific law than the GDPR in Spain, Law 25/2007 on Data Retention, which states that we can only provide that information to the police upon a request from a judge.”

The respondent also claims that “in the requested terms, it entails a cost in terms of resources and a clear violation of the rights of third parties who would be affected by the necessary measures to comply with the claimant's request, which Virgin Telco cannot afford to assume.”

It is important to clarify what has already been reproduced regarding the exercise of the right of access: it will be exercised in relation to the personal data “concerning” the claimant (Article 15.1 GDPR). In this regard, the respondent must take the necessary precautions to ensure that only the personal data concerning the claimant is provided to the claimant, as the latter is the user (not just the holder) of the mobile telephone line. All of this is in consideration of the risks to the rights and freedoms of the data subjects.

Furthermore, regarding the cost of complying with such a request, it is necessary to bring up Guidelines number 1/2022, adopted on March 28, 2023, which approves the Application Guide for Article 15 of the GDPR, concerning the Right of Access of the Data Subject, in which paragraph 188 states that “The fact that the data controller takes a significant amount of time and effort to provide the information or copy to the data subject cannot in itself make a request excessive.”

Finally, the respondent indicates that it has provided a reasonable alternative for the claimant, who informed the Data Protection Officer of Euskaltel, via email dated May 23, 2023, that they needed the geolocation data from the year 2021 to demonstrate the change of their tax residence to ***COUNTRY.1 during the year 2021, before the Tax Agency of this country. Therefore, it sent “the information of the roaming country of their telephone line.” Since “this data is indeed processed in billing processes, and is stored during the applicable legal obligation prescription periods, which amounts to six years.” Additionally, it understands that such information is more than sufficient to support before the Tax Agency or any other tax authority that a change of residence occurred: it indicates that Mr. A.A.A.'s mobile phone made and received calls from ***COUNTRY.1, primarily, and not from Spain, thus it does not require geolocation data for this purpose. Hence, we qualify its

claim as a whim (and an abuse of rights), and that we consider this circumstance must be taken into account when resolving the claim filed against it.”

However, the claimant's request for the right of access pertains to the geolocation data of their mobile phone line, regardless of the reason for which it is requested. Furthermore, it is neither an excessive nor unfounded request, so the data controller cannot refuse to act on it.

For the reasons stated, it is appropriate to uphold the claim that initiated this procedure regarding the right of access.

VII

Right to Restriction of Processing

Article 18 of the GDPR, which regulates the right to restriction of processing of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller restriction of processing of personal data when one of the following applies:

- a) the data subject contests the accuracy of the personal data, for a period enabling the controller to verify the accuracy of the data;
- b) the processing is unlawful and the data subject opposes the deletion of personal data and requests instead the restriction of its use;
- c) the controller no longer needs the personal data for the purposes of processing, but the data subject needs them for the formulation, exercise or defense of claims;
- d) the data subject has objected to processing pursuant to Article 21(1), while verifying whether the legitimate grounds of the controller override those of the data subject.

2. When the processing of personal data has been restricted under paragraph 1, such data may only be processed, except for storage, with the consent of the data subject or for the formulation, exercise or defense of claims, or to protect the rights of another natural or legal person or for important public interest reasons of the Union or of a Member State.

3. Any data subject who has obtained restriction of processing under paragraph 1 shall be informed by the controller before the restriction is lifted."

It should be noted that the right to restriction of processing enables the claimant to have the processing of data limited when the accuracy of the personal data is contested, for a period allowing the controller to verify the accuracy of the data; when the processing is unlawful and the data subject opposes the deletion of personal data.

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of personal data; when the data controller no longer needs the personal data for the purposes of processing, but they are necessary for the formulation, exercise, or defense of claims, or when the data subject has objected to the processing, while verifying whether the legitimate grounds of the data controller override those of the claimant.

It is verified that in this case, the claimant exercised their right to restriction, as they requested the respondent not to proceed with the deletion of the personal data requested in the right of access until it was provided to them. In response to this exercise, there is no record that the respondent expressly addressed it or denied it with justification, nor that they sent the required response to the request, as established in Article 12.4 of the LOPDGDD.

Since there is no copy of the necessary communication that must be directed to the claimant informing them about the decision made regarding the exercise of rights request, it is appropriate to uphold the claim that originated this procedure concerning the right to restriction.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge EUSKALTEL, S.A. with NIF A48766695, to send to the claimant, within ten working days following the notification of this resolution, a certification addressing the requested right or a motivated denial indicating the reasons why the request cannot be met, in accordance with the provisions established in the body of this resolution, that is, ensuring that the personal data concerning them is provided to the user of the telephone line, who may or may not be the holder of the line. The actions taken as a result of this Resolution must be communicated to this Agency within the same timeframe. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: TO UPHOLD the claim made by A.A.A. considering that the provisions of Article 18 of the

GDPR have been infringed and to urge EUSKALTEL, S.A. with NIF A48766695, to send to the claimant, within ten working days following the notification of this resolution, a certification addressing the requested right or a motivated denial indicating the reasons why the request cannot be met, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same timeframe. Non-compliance with this resolution could result in the commission of the infringement considered in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

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THIRD: NOTIFY this resolution to A.A.A. and to EUSKALTEL, S.A.

In accordance with the provisions established in Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions established in Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Litigation Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Litigation Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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